

		3. Supporting papers must be submitted at least 16 court days before the Final Accounting hearing (calculated while accounting for court holidays). Final Accounting will be set in accordance with the Court’s Order of Final Approval and Judgment after Class Counsel proposes an appropriate date in the revised proposed order and judgment. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing date. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement Agreement, as well as the amount of unclaimed funds, if any, remitted to the State Controller’s Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff is ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days.
111	Rotaru vs. Blower-Dempsey Corporation 2024-01409012	Motion for Preliminary Approval of Class and PAGA Settlement The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for preliminary approval of a \$288,000 class and PAGA action settlement. Upon the submission of the documents described below, the motion will be GRANTED. Counsel states ROA 74 Ex. 4 is “[a] true and correct copy of each confirmation from the LWDA” reflecting service on the LWDA of the moving papers. ROA 74 ¶ 75. This is a single confirmation, and it does not identify the documents purportedly served. All proofs of service to the LWDA must be in the form of the proof of service following ROA 74. Assuming compliance with the above, and based on a review of the settlement, the court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the final approval hearing. The final approval hearing is scheduled for November 12, 2026 at 2:00 p.m. in Department CX102. The motion for final approval shall be filed at least 16 court days before the hearing. If counsel cannot meet this deadline, then counsel must request a continuance of the hearing. Failure to do so may result in the issuance of an OSC re: Monetary Sanctions. At the final approval hearing, evidence supporting the request for an award of attorneys’ fees should be presented in the form of time records or a summary of time spent on the substantive tasks to enable the court to evaluate the lodestar and costs claimed. Class counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. Although a determination regarding the amount of the attorneys’ fees award will not be made until final approval, the court is unlikely to approve attorneys’ fees in excess of thirty percent (30%) of the GSA absent unique circumstances. Class counsel should address whether any such unique circumstances exist. Requests for litigation costs should

		be supported by invoices and should not include copies, postage, legal research, and other office overhead. Additionally, at the final approval hearing, plaintiff must provide a detailed declaration describing the circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation and the estimated amounts of her individual class and PAGA awards. Within five court days, counsel to submit a proposed order with exhibits attached that conforms in all aspects to the above. Plaintiff to give notice of this court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
112	Gonzalez vs. Bear Down Brands, LLC 2023-01340515	Motion for Preliminary Approval of Class and PAGA Settlement Plaintiff Nicolas Gonzalez's Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to July 23, 2026 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 8/7/2023, Plaintiff Nicolas Gonzalez, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendant Bear Down Brands, LLC, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #2.) Defendant answered on 11/8/2023. (ROA #13.) On 1/8/2026, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class/PAGA Action Settlement Agreement ("Settlement Agreement") and Class Notice for the Court's review. The motion seeks preliminary approval of the parties' proposed settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$149,250. The GSA includes a credit of \$37,250 for money already paid by Defendant to individual <i>Pick Up Stix</i> Settled Class Members allegedly as a result of this action and \$12,500 allocated for PAGA penalties. The Court has identified several issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 1. Plaintiff must provide a copy of his PAGA notice letter to the LWDA. 2. The moving papers do not provide sufficient information about Defendants' <i>Pick Up Stix</i> settlement payments—including but not limited to the dates of the settlement payments, how many Class Members were paid, how much was paid to each, or what type of release Defendant obtained in exchange—so as to allow the Court to properly evaluate the fairness, adequacy, and